Mobitel (Pvt) Ltd.

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Policy and Procedure on Employee Discipline – Addendum I

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Addendum to HR Policy 0038 - Policy and Procedure on Employee Discipline

The below amendments to the Policy & Procedure on Employee Discipline, have been effected with Board approval and shall come into force with effect from 9th March 2021.

This addendum has been enforced in view of the practical difficulties that surface in the implementation of the present policy, such as the limitations faced by accused employees of high designations in the selection of a "defending Officer", as their choice of defending officers may be limited due to the scarcity of personnel of equal or superior rank within the company.

The company has replaced the role of the "silent observer" with the role of the "defending officer" through this addendum to the policy and procedure on employee discipline. The company has also introduced a definition for the role of "prosecuting officer" for the purposes of clarity and transparency.

Accordingly, the following amendments are affected to the Policy and Procedure on Employee Discipline, through this addendum.

1. The definition clause of the said Policy (Clause 2) has been amended by the substitution of the definition of a "Defending Officer" with the following definition:

"Defending Officer" means the person nominated (if any) by the "Accused Employee" to defend him at the Domestic Disciplinary Inquiry".

Such employee shall be:

> ***a. an employee of the Company, in all cases where the company has exclusively conducted the preliminary investigations;***
>
> ***b. an employee of the Company or an employee of Group Internal Audit / Investigation Division or HR Division of any other Company within the Group of Companies of Sri Lanka Telecom PLC, in cases where the investigation had been carried out by Group Internal Audit / Investigation Division.***

Such a defending officer, shall not be:

> ***a. a witness of the same domestic disciplinary inquiry***
> ***b. an accused / suspect of another ongoing domestic disciplinary inquiry of the company or any subsidiary / associate company of Sri Lanka Telecom PLC.***

- The following definition of a "Prosecuting Officer" has been included in clause 2 of the Policy and reads as follows:

  "Prosecuting Officer" means any employee nominated by the Company to prosecute the case. Such employee should be either an employee of the Company or an employee of Group Internal Audit / Investigation Division or HR Division of any other Company within the Group of Companies of Sri Lanka Telecom PLC.

- Clause 7.4 of the Policy has been amended by the substitution of the paragraph therein with the following paragraph:

  "The accused employee is permitted to bring any other employee(s) of the Company, as a witness(es) to give evidence at the inquiry, provided that such employees' details and the intention to present him/her as a witness is communicated to the HR Division in writing by such accused employee at least Two (02) working days prior to the inquiry. However, presence of a "defending officer" shall be allowed on the request of the accused employee and **no legal representation is allowed at the Domestic Disciplinary Inquiry**."

To avoid any misinterpretations, the concept of Silent Observer is to be removed from the policy and shall no longer be applicable and the presence of a "defending officer" shall be allowed on the request of the accused employee, communicated to the HR Division or to the relevant signatory of the charge sheet in writing at least two (02) working days prior to the Domestic Disciplinary Inquiry (DDI).